

24STCV03309 24STCV03309

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NATURE OF PROCEEDINGS: Hearing on Motion for
Reconsideration or, in the Alternative, Request for the Court to Exercise Its
Inherent Authority to Correct an Erroneous Interim Order

Plaintiff's Motion for Reconsideration is denied.

BACKGROUND

Plaintiff Michael Kors (Plaintiff) filed this action against
Moss Management Services, Inc., dba Moss & Company, Covina Manor, L.P., Diane
Hernandez, Daniel Lopez, and Maria Badalian (collectively, "Defendants"),
alleging that Defendants denied his Section 8 housing application because of
his national origin and his disability.

The Second Amended Complaint alleges causes of action for (1)
Discrimination in Violation of the Fair Employment and Housing Act; (2)
Harassment in Violation of the Fair Employment and Housing Act; (3) Retaliation
in Violation of the Fair Employment and Housing Act; (4) Negligence; (5)
Violation of the Unruh Civil Rights Act; (6) Intentional Infliction of
Emotional Distress, and (7) Injunctive Relief and Declaratory Judgment.

In a March 6, 2026 order, the Court sustained Defendants'
demurrer to the Sixth Cause of Action for Intentional Infliction of Emotional
Distress and granted Defendants' motion to strike Plaintiff's punitive damages
allegations, both with leave to amend. In a June 11, 2026 order, the Court
sustained Defendants' demurrer to the same cause of action and granted
Defendants' motion to strike the punitive damages allegations, both without
leave to amend.

Plaintiff moves for reconsideration of the June 11, 2026 order. Defendants filed an Opposition.

LEGAL STANDARD

A party affected by an order may apply to the same judge or court, within 10 days after service of written notice of entry of the order and based upon new or different facts, circumstances, or law, to reconsider the matter and modify, amend, or revoke the prior order. The party must state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown. (Code Civ. Proc., § 1008, subd. (a).) Section 1008 specifies the court's jurisdiction with regard to applications for reconsideration, and no application to reconsider any order may be considered unless made according to that section. (Code Civ. Proc., § 1008, subd. (e).)

Section 1008 limits the parties' ability to file repetitive motions, but it does not limit the court's authority to reconsider its prior interim rulings on its own motion so that it may correct its own errors. (Le Francois v. Goel (2005) 35 Cal.4th 1094, 1105.) A party may communicate its view that the court should reconsider a prior ruling, but "a party may not file a written motion to reconsider that has procedural significance if it does not satisfy the requirements of section 437c, subdivision (f)(2), or 1008." (Id. at p. 1108.) Unless those requirements are met, any action to reconsider a prior interim order must formally begin with the court on its own motion, and the court need not rule on a suggestion that it reconsider a previous ruling. (Ibid.)

ANALYSIS

I. Reconsideration Under Section 1008

Section 1008, subdivision (a), conditions a party's application on a showing of new or different facts, circumstances, or law. A renewed contention that the court decided the earlier motion incorrectly does not satisfy that condition. The moving party must offer some fact or circumstance not previously considered by the court. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

Here, Plaintiff acknowledges that the circumstances

presented may not fall squarely within the statutory categories of new or different facts, circumstances, or law under section 1008. (Mot. at p. 2.) That acknowledgment is well taken. The Motion identifies no evidence discovered after the June 11, 2026 order, no decision issued after that order, and no change in the governing law. The supporting declaration identifies published authority that predates the ruling and asserts that the Court erred in relying on *Janken v. GM Hughes Electronics* (1996) 46 Cal.App.4th 55. (Vogel Decl., ¶ 6.) That is disagreement with the Court's reasoning, not new matter. To the extent the Motion is brought under section 1008, it is denied.

II. Reconsideration on the Court's Own Motion

Plaintiff asks in the alternative that the Court exercise its inherent authority to correct an interim order Plaintiff contends is erroneous. Defendants respond that *Le Francois* forbids a party from obtaining through that route the reconsideration section 1008 denies it. (Opp. at pp. 10-11.)

Defendants read *Le Francois* too broadly. Nothing prevents a party from communicating its view that the Court should reconsider a prior ruling, and the Court may correct an interim order it believes to be erroneous no matter how it came to hold that belief. (*Le Francois*, supra, 35 Cal.4th at p. 1108.) What a party may not do is compel that result by motion. The Court treats Plaintiff's alternative request as a suggestion and considers whether the June 11, 2026 order was erroneous.

Plaintiff's first contention is procedural. Plaintiff argues that Defendants raised *Janken* and its personnel management rationale for the first time in reply, leaving Plaintiff no opportunity to respond. (Vogel Decl., ¶ 6.) The authority Plaintiff relies on addresses the introduction of new evidence with reply papers rather than the citation of published authority on an issue already raised. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) Plaintiff's counsel argued at the June 11, 2026 hearing both that *Janken* had first been cited in reply and that *Janken* did not apply to housing cases, and the Court considered and rejected those arguments before confirming its tentative ruling. (Cresap Decl., ¶¶ 5, 7.) Plaintiff has now briefed the point in full, and the Court has considered it.

Plaintiff's second contention is substantive. Plaintiff argues that *Janken* arose in the employment context, that no California

decision extends it to housing discrimination, and that intentional infliction of emotional distress is cognizable in the housing relationship. (Mot. at p. 5.) The last proposition is correct. A tenant may state a claim against a landlord for intentional infliction of emotional distress where the conduct pleaded is extreme and outrageous and produces severe emotional distress. (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 921-922.) The June 11, 2026 order did not hold otherwise.

The narrower proposition Plaintiff advances, that an employment decision under the Fair Employment and Housing Act can have no application to a housing claim under the same statute, is not the law. The basic principles applicable in employment cases apply in the housing context as well. (Brown v. Smith (1997) 55 Cal.App.4th 767, 782-783.) Janken supplied the proposition that conduct alleged to violate a discrimination statute does not by itself satisfy the separate and more demanding outrageousness element of the tort, and that where such conduct is improperly motivated the remedy lies in the discrimination claim. (Janken, supra, 46 Cal.App.4th at p. 80.) That proposition does not depend on the setting in which Janken applied it.

The June 11, 2026 order also measured the pleaded conduct against the governing standard. A plaintiff must allege outrageous conduct, an intention to cause or reckless disregard of the probability of causing emotional distress, severe or extreme emotional distress, and actual and proximate causation, and the conduct alleged must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (Vasquez v. Franklin Management Real Estate Fund, Inc. (2013) 222 Cal.App.4th 819, 832.) The order identified the allegations concerning the September 21, 2023 encounter with Hernandez, the internal email Lopez sent that day, and the subsequent denial of the application, and concluded that those allegations did not meet that standard. (SAC, ¶¶ 155-156.) The allegations the Motion recounts are the same allegations the order addressed. (Mot. at p. 5; SAC, ¶¶ 77-79.)

Defendants also contend that the Second Amended Complaint independently fails to allege severe emotional distress. (Opp. at p. 12.) Because the Court declines to disturb the order, that alternative ground requires no separate treatment.

The Court is not persuaded that the June 11, 2026 order was erroneous and declines to reconsider it on the Court's own motion.

III. Punitive Damages

Plaintiff argues that because the Fair Employment and Housing Act and Unruh Civil Rights Act causes of action remain pending, punitive damages should be reinstated as to those claims. (Mot. at p. 6.) Punitive damages are available in a civil action under the Fair Employment and Housing Act, but only where the defendant has been guilty of oppression, fraud, or malice within the meaning of Civil Code section 3294. (*Commodore Home Systems, Inc. v. Superior Court* (1982) 32 Cal.3d 211, 215.) The survival of a statutory claim establishes that the remedy is available in principle. It does not supply the allegations the statute requires.

Here, the June 11, 2026 order recited the definitions of malice, oppression, and fraud in Civil Code section 3294 and concluded that the allegations underlying the Sixth Cause of Action did not meet the heightened standard those definitions impose. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) The order applied a distinct legal standard to an overlapping set of allegations. Reinstating the request would require a showing that those allegations satisfy section 3294, and the Motion does not attempt one. The Court declines to reconsider that portion of the order on its own motion.

IV. Leave to Amend

Plaintiff asks in the alternative for leave to amend. (Mot. at p. 6.) Defendants respond that Plaintiff identifies no facts he would add. (Opp. at p. 14.) The request depends on reconsideration of the June 11, 2026 order. Because the Court denies reconsideration under section 1008 and declines to reconsider the order on its own motion, the request for leave to amend fails with it.

Accordingly, the Motion for Reconsideration is denied.

CONCLUSION

The Motion for Reconsideration or, in the Alternative, Request for the Court to Exercise Its Inherent Authority to Correct an Erroneous Interim Order is denied.